

**BEFORE THE
FEDERAL MARITIME COMMISSION**

DOCKET NO. 24-13

Access One Transport, Inc.

v.

COSCO Shipping Lines Co. Ltd.

**RESPONDENT'S RESPONSES TO
COMPLAINANT ACCESS ONE TRANSPORT INC.'S
PROPOSED FINDINGS OF FACT**

Prepared by:

Eric C. Jeffrey
Rebecca A. Fenneman
Kaya C. Massey
Nicholas L. Webb
JEFFREY/FENNEMAN LAW +
STRATEGY, PLLC
700 12th Street, NW Suite 700
Washington, DC 20005
Telephone: 202-904-2301

Attorneys for Respondent

Respondent respectfully submits its responses to Complainant's Proposed Findings of Fact. Complainant's Proposed Findings of Fact are reproduced here verbatim, followed by Respondent's Responses thereto in **bold** typeface.

I. INTRODUCTION

CF1. At all times relevant, COSCO was and is an ocean carrier aka VOCC; Answer to Complaint, pg. 3, Claimant's Appendix (pages in Claimant's Appendix hereinafter referred to as "CX") CX0004.

RESPONSE: Admitted.

CF2. At all times relevant, Access was and is a motor carrier; Declaration of Nobuyuki "Nobu" Suzuki, (Dec. of Suzuki") ¶ 1, CX01442.

RESPONSE: Admitted.

CF3. From on or about July 2021 through October 2022 (the "Relevant Time Period"), Access, in its ordinary course of business, pulled full containers from COSCO designated terminals in the Ports of Los Angeles and Long Beach for delivery to Access and COSCO customers and to return empty containers to COSCO designated terminals; Declaration of Kahana Ogawa ("Dec. of Ogawa") ¶ 3, CX01451; Access Claim Summary, columns H – N, CX01430-01435.

RESPONSE: Admitted.

CF4. Access' and COSCO's customers would fall into the definition of "Merchant" under the terms and conditions of COSCO's bills of lading; Dec. of Suzuki, ¶2, CX01442; COSCO Bill of Lading terms, CX00155.

RESPONSE: Admitted.

CF5. After the consignees had unloaded the cargo in the COSCO containers, Access in the regular course would attempt to return the empty containers to COSCO within the free time allowed; Dec. of Suzuki, ¶3, CX01442.

RESPONSE: Denied that Access regularly “attempt[ed] to return containers to COSCO within the free time allowed.” Evidence introduced by AOT demonstrates that it never attempted to return containers on weekend days, either during the free time allotted or afterwards. See RPFF61-62.

CF6. Access provider motor carrier drayage services on behalf of COSCO in conjunction with the consignee (“Carrier Haulage”) and on behalf of consignees/cargo owners directly (“Merchant Haulage”); Dec. of Suzuki, ¶¶4 and 5, CX01442.

RESPONSE: Respondent lacks information sufficient to admit or deny. Respondent objects to Complainant’s citation to the declaration of Nobuyuki Suzuki, which was not produced to Respondent during the discovery period.

CF7. For Carrier Haulage, a motor carrier is nominated by the consignee and engaged by COSCO to deliver the full container to the consignee and return the empty at the expense of COSCO; Dec. of Suzuki, ¶4, CX01442.

RESPONSE: Respondent lacks information sufficient to admit or deny. Respondent objects to Complainant’s citation to the declaration of Nobuyuki Suzuki, which was not produced to Respondent during the discovery period. Respondent further objects to Complainant’s language with respect to Access One being “engaged by COSCO,” as no evidence has been introduced regarding Access One being engaged by consignee as a customer-nominated trucker (“CNT”) under Carrier Haulage. See CX00312-CX00313.

CF8. Merchant Haulage concerns services by a motor carrier retained by the consignee or cargo owner and is directed to pull the full container and return the empty at the expense of the merchant; Dec. of Suzuki, ¶5, CX01442.

RESPONSE: Admitted.

CF9. For Merchant Haulage or Carrier Haulage, COSCO would designate the available terminals in the Ports of Los Angeles or Long Beach for return of empty containers but on occasion no terminal was available for empty returns; Dec. of Suzuki, ¶6, CX01442; Declaration of William Thompson (“Dec. of Thompson”) ¶2, CX01446-01447; see general eModal information and emails, CX01311-CX01418.

RESPONSE: Admitted that COSCO would designate available terminals in the Ports of Los Angeles/Long Beach for return of empty containers. Denied that “on occasion no terminal was available for empty returns.” On occasion, AOT may have been unable to secure an appointment at the terminal to return the empty containers; however, that does not mean “no terminal was available for empty returns.”

On February 10, 2022, in response to an email from AOT’s Nobu Suzuki, COSCO’s Phillip Taylor instructed, “There will be no issue securing empty return appointments during Friday night, or Saturday/Sunday day shifts. *Please plan to take advantage of the weekend offering.*” RPF47. However, AOT has introduced no evidence showing that it ever attempted to return containers on the weekends, per COSCO’s suggestion. RPFs 61-62.

CF10. When COSCO designated terminal availability, Access found that either the terminals did not have any appointments available for return of the empty containers or were requiring “dual” transactions in order to return an empty container thus prohibited the return of the empty container in a timely fashion, Dec. of Thompson, ¶3, CX01447; Access Terminal

Availability Summary, CX1436-CX01439; Blue Cargo screen shots, CX01092-CX01302; eModal information and emails, CX01311-CX01418.

RESPONSE: Denied to the extent that Complainant suggests that COSCO directed the marine terminal operator's decision to require a trucker to both return of an empty container and pick up a loaded container, otherwise known as a one-for-one swap, dual transaction, or dual move. Ocean carriers such as COSCO have no say in the terminal's decision to require dual moves.

Moreover, Blue Cargo does not receive its information directly from any marine terminal and is not sanctioned by any marine terminal. In other proceedings, the Presiding Officer has recognized that "Blue Cargo's data is sometimes inaccurate." *Hapag-Lloyd A.G. and Hapag-Lloyd (America) LLC – Possible Violations of 46 U.S.C. § 41102(c)*, FMC Dkt. 21-09 (I.D. April 22, 2022). Respondent objects to Blue Cargo screen shots as irrelevant and unreliable. Terminals in the LA/LB area release (i.e., make available) appointments either daily (PCT, LBCT) to 1.5 weeks to 2 weeks in advance (Fenix) ["FMS"]. Prudent drayage providers, therefore, plan their dispatches accordingly, as appointments are taken up quickly. If AOT did not timely attempt to make appointments, the Blue Cargo screenshots showing the lack of available appointments on a certain day as of that morning do not identify whether adequate appointments were ever available. In addition to the terminals advising the trucking community as to gate appointment availability and dual move requirements, COSCO also sends daily email to the trucking community regarding empty return locations and terminals' dual move requirements.

CF11. A dual transaction requires the motor carrier to pick up a full container at the same time it dropped off an empty container. If a motor carrier does not have a corresponding full pick

up at the terminal it may not drop off the empty. Dec. of Thompson, ¶4, CX01447; COSCO First set of Discovery Responses, response to interrogatory no. 1, CX00097.

RESPONSE: Denied to the extent that Complainant suggests that such “dual transactions” were imposed by COSCO. Instead, it was not COSCO but the port terminals who required these dual transactions. Otherwise admitted.

CF12. Access and COSCO are parties to the Uniform Intermodal Interchange and Facilities Access Agreement (“UIIA”). COSCO participates in the UIIA through COSCO Shipping North America, Inc., aka COSCO America (“COSCO NA”); Dec. of Suzuki, ¶7, CX01442; Answer pg. 3-5 CX00004-CX000006.

RESPONSE: Admitted that Access One identifies itself as a party to the UIIA. Admitted that COSCO NA is a party to the UIIA.

CF13. Under the UIIA addendum applicable to COSCO, COSCO allows four business days free time to return empty containers after full loads are pulled from COSCO’s terminals; Answer pg.5 CX00006; UIIA addendum, CX00151.

RESPONSE: Denied with respect to the phrase “COSCO’s terminals,” as the terminals are not controlled by COSCO. Admitted that COSCO through COSCO NA allows four business days’ free time to return empty containers under the UIIA Addendum. CX00151.

CF14. Thereafter, per the COSCO addendum to the UIIA, COSCO charges various rates per day detentions for each day the empty container is not returned to COSCO beyond the free time allowed depending on the size and configuration of the empty container; Answer pg. 5, XC00006; UIIA addendum, CX000152-CX00153.

RESPONSE: Admitted.

CF15. COSCO’s tariff has similar free time available for containers pulled under

Merchant Haulage but allows 8 working days free time for containers pulled under Carrier Haulage; COSCO First set of Discovery Responses, response to interrogatory no. 8, CX00099; COSCO's Rules Tariff CX00451-CX00454.

RESPONSE: Admitted.

CF16. The UIIA addendum and COSCO's Rules Tariff both provide that free time days do not include Saturdays, Sundays and Holidays, without defining which "holidays" are observed UIIA addendum or tariff; CX00151; COSCO's Rules Tariff CX000451-CX00454.

RESPONSE: Denied. The UIIA Addendum defines "Holidays" as "those that are enumerated in labor contracts at the point of interchange." CX00151.

CF17. COSCO, during discovery has refused to provide further clarity of the use of "holiday" in the UIIA; COSCO First set of Discovery Responses, response to interrogatory no. 4, CX00098.

RESPONSE: Denied. Respondent denies that "holiday" necessitates a specific definition beyond those holidays enumerated in labor contracts at the point of interchange.

CF18. In addition to the UIIA and its tariff, COSCO has further agreements directly with shippers, consignees, beneficial cargo owners or other parties which extend the amount of free time allowed or that may change the amount of detention charged on a daily basis; Answer pp. 5-6, CX00006-CX00007; Dec. of Suzuki, ¶8, CX01442; COSCO's Rules Tariff, CX00455.

RESPONSE: Admitted to the extent that COSCO may sometimes negotiate the duration of free time as a term in its confidential service contracts with its shipper customers, which are filed with the Federal Maritime Commission as required by the Shipping Act. Denied that such agreements permit COSCO to "change the amount of detention charged on a daily basis."

CF19. Access benefits from such agreements in terms of free time allowed, especially for Carrier Haulage; Answer pp. 5-6; CX00006-CX00007; Dec. of Suzuki, ¶8, CX02441; COSCO's Rules Tariff, CX00455.

RESPONSE: Respondent lacks information sufficient to admit or deny, as COSCO does not enter into service contracts subject to the Shipping Act with drayage truckers generally or with Access One specifically. The contractual relationship between COSCO and Access One is governed by the UIIA. To the extent that Access One acts as agent of an entity entitled to free time above tariff limits as specified in a service contract filed with the FMC, such free time would consequently extend to Access One as that entity's agent.

CF20. COSCO would designate locations for empty terminals via eModal through email information from COSCO's Long Beach Customer Service Center; COSCO First set of Discovery Responses, responses to request for production nos. 1 and 15, CX00082-CX000083; CX00097; CX01311-CX01418.

RESPONSE: Denied that "COSCO would designate locations for empty terminals." Admitted that COSCO sends daily instructions with respect to empty container return locations and that these instructions are transmitted by eModal emails., which include a chart listing the LA/LB terminals vis-à-vis the following three days' worth of appointment availability for both day and night time slots. See, e.g., CX01312-01313. The eModal emails further explain, "For Single empty in transactions, the appts are opened at 11:00am on a daily basis for the next 2 x shifts." *Id.* The emails also state, "REMINDER: An appointment is required for all terminal transactions on a **First Come First Serve basis." *Id.***

CF21. eModal is a web based platform with provides [sic] visibility as to full and empty container status and the ability to make appointments for the pick up of full containers or return of

empty containers to terminals in the Ports of Los Angeles and Long Beach, Dec. of Thompson, ¶5, CX01447.

RESPONSE: Admitted that eModal is a third-party platform used by ocean carriers, terminals, and drayage truckers to facilitate the pickup and return of containers at various ports. eModal is not owned or operated by COSCO. See <https://www.adventemodal.com/mission-and-vision.html> .

CF22. In addition, motor carriers such as Access, could obtain the designated empty container terminal location information through services such as Blue Cargo, Dec. of Thompson, ¶6, CX01447; Dec. of Ogawa, ¶4 CX01451.

RESPONSE: See Response to CF10.

CF23. Access employees would consult the information provided by COSCO/eModal on a daily basis in an effort to determine if there were locations that were designated as an empty terminal location; Dec. of Thompson, ¶7, CX01447.

RESPONSE: Respondent lacks information sufficient to admit or deny Access One's alleged internal operations, except to note that Complainant has provided no evidence that it sought terminal appointments on weekend days. See RPFF 61-62. Respondent also objects to Complainant's citation to the declaration of William Thompson, which was not provided to Respondent during the discovery process.

CF24. Where COSCO designated an empty return location, before an empty container could be returned, Access must then make an appointment with the designated terminal; Dec. of Thompson , ¶8, CX01447.

RESPONSE: Complainant has not identified the "empty return location(s)" referenced in CF24 with adequate specificity for Respondent to admit or deny. Admitted that terminals

generally require appointments to conduct container moves. Otherwise denied.

CF25. Access discovered there were no actual appointments available to return empty containers to COSCO terminals even when COSCO had designated a terminal for returns; Dec. of Thompson, ¶9, CX01447, Dec. of Ogawa, ¶5, CX01451; Access Terminal Availability Summary, CX01436-CX01439, Blue Cargo screenshots, CX01092-CX01302, see generally eModal info and COSCO emails CX01311-CX01418.

RESPONSE: Denied. While, on occasion, AOT may have been unable to secure an appointment at the terminal to return an empty container, that does not mean “there were no actual appointments available to return empty containers to COSCO terminals.” See RPFFs 46, 54. On February 10, 2022, in response to an email from AOT’s Nobu Suzuki, COSCO’s Phillip Taylor instructed, “There will be no issue securing empty return appointments during Friday night, or Saturday/Sunday day shifts. *Please plan to take advantage of the weekend offering.*” CX01397 (emphasis added). However, AOT has introduced no evidence showing that it ever attempted to return containers on the weekends, per COSCO’s suggestion. See RPFFs 61-62.

CF26. Access would also contact the designated terminal or COSCO to determine alternative locations or appointment availability; Dec. of Thompson, 10, CX01448; see generally eModal info and COSCO emails CX01311-CX01418.

RESPONSE: Denied in that Complainant has not introduced any evidence that AOT contacted the designated terminals. Admitted that AOT occasionally reached out to COSCO between February 9 and April 5, 2022 to lament its difficulty obtaining appointments for single empty in transactions. See RPFF42. Otherwise denied.

CF27. Where dual transactions were required, Access did not have the requisite full

container pick up to allow a delivery of an empty container to the terminal; Dec. of Thompson, ¶11, CX01448; eModal info and COSCO emails, CX01319, CX01320, CX10349, CX01357, CX01391, CX01402, CX01403.

RESPONSE: Respondent lacks sufficient knowledge regarding Complainant's internal operations to admit or deny.

CF28. During the Relevant Time Period, as relevant to the current claim, Access had difficulties returning 379 containers and was invoiced detention charges totaling \$350,785.00; Dec. of Ogawa, ¶7, CX01451; Access Claim summary, CX01430-01435.

RESPONSE: Respondent lacks sufficient knowledge regarding Complainant's internal operations to admit or deny.

CF29. COSCO admits Access disputed all of the detention invoices which are subject to this action, COSCO First Set of Discovery Responses, response to interrogatory no. 1, CX00108; Access Interrogatories, Set. 1, Exhibit A, CX00069-CX00076.

RESPONSE: Admitted that AOT disputed all of the detention invoices at issue. Denied that AOT submitted sufficient documentation to justify waiving each and every one of the invoices.

CF30. Before and during the pendency of this action, COSCO threatened to "shut out" Access for failure to pay all detention charges and on one occasion did shut out Access. In addition, COSCO also threatened to shut out Access in February 2022 when COSCO actually owed Access for unpaid invoices on Carrier Haulage performed by Access for COSCO; Dec. of Suzuki, ¶9, CX01442; Shut Out Notices CX01303-01310; Emails re Shut Out Notices CX01426-01429.

RESPONSE: Admitted that Respondent's finance system sent automated shut out notices to Access One for unpaid detention charges. Admitted that UIIA sent notices to Access One.

Denied to the extent that during the pendency of litigation, such automatic charges were manually overridden. Denied inasmuch as the threatened shut out was never effective, as COSCO timely instructed the UIIA: “do not shut out under disp pending trade review...” CX01308. Accordingly, UIIA immediately rescinded the shut out notice, and AOT was never shut out. CX01310 (Reinstatement of Interchange Privileges Effective Date: 03/29/2022).

CF31. Prior to the filing of Access’ complaint, the claimed detention charges for 379 containers can be categorized as follows:

1. Detention charges were paid on 60 containers totaling \$42,795.00¹
2. COSCO cancelled detention charges in whole or part on 200 containers totaling #[SIC]110,270.00.
3. COSCO demanded payment of detention charges on 121 containers totaling \$197,720.00²; Dec. of Ogawa, ¶8, 9 CX01452; Access Claim Summary, CX01430-01435.

RESPONSE: Admitted.

CF32. Access also made an additional payment of \$1,830.00 to be applied to invoice no. HOU00061918 which had multiple containers Dec. of Ogawa, ¶9, CX01452; Access Claim Summary CX01430-01435 including column X.

RESPONSE: Respondent admits that Complainant paid \$1,830.00 which Respondent applied to HOU000061918, as reflected in CX01430. Otherwise denied.

CF33. For ease of reference Access has allocated the payment to container no.

¹ Access also made an additional payment of \$1,830.00 to be applied to invoice no. HOU00061918 which had multiple containers (CF 32) The \$1,830.00 is included in the claim referenced herein. For ease of reference Access has allocated the payment to container no. CSNU1322655 which would increase the “paid” containers to 61 (CF 33).

² The detail total more than 379 containers since COSCO partially cancelled some charges on 3 containers and then cancelled the remaining charges at a later date (CF 34).

CSNU1322655 which would increase the “paid” containers to 61. Dec. of Ogawa, ¶9, CX01452; Access Claim Summary CX01430-01435.

RESPONSE: Denied that such reallocation made anything remotely easier. Further denied to the extent that Access One never informed COSCO about this reallocation.

CF34. The detail in CF 31 totals more than the 379 containers since COSCO partially cancelled some charges on 3 containers and then cancelled the remaining charges at a later date; Dec. of Ogawa, ¶10, CX01452, Access Claim Summary, CX01430-10435 including columns R & S.

RESPONSE: Admitted.

CF35. COSCO’s actions in demanding payment of some detention charges but not others was arbitrary and capricious since COSCO would demand payment and also cancel charges for some of the same dates, and would demand charges when there was no availability to return the empty container or if only dual appointments were available. Dec. of Ogawa, ¶11, CX01452; Access Claim Summary, columns R, S, V and X CX01430-01435 and compare to Access Terminal Availability Summary data including columns C, D, and E, CX01436-CX01439.

RESPONSE: Denied. COSCO is not responsible whatsoever dual transactions, which are imposed by the marine terminals, and as such, COSCO is not required to reimburse a drayage provider who is unable to comply with the marine terminal’s dual move requirement – especially AOT, who refused to work on the weekends. See RPFFs 61-62. Further denied because this purported “fact” is a poorly disguised conclusion of law (“demanding payment” was “arbitrary and capricious”).

CF36. COSCO, during discovery herein, refused to explain this arbitrary conduct and instead only referred to its policies in its tariff; COSCO First Set of Discovery Responses, response

to interrogatories nos. 5, 8, 10 and 14, CX00098-CX00102.

RESPONSE: Denied that referring Complainant to COSCO's published policies and procedures equates to a refusal to explain its conduct. Further denied that COSCO's conduct was "arbitrary."

CF37. During the pendency of this action COSCO reversed course on the outstanding unpaid detention invoices. As early as May 2024 COSCO cancelled all detention charges on the previously pending open invoices except for one partial invoice; Declaration of Ogawa, ¶12, CX01452-CX01453; COSCO Response to discovery, Set 2, CX00137-CX00139; Access Requests for Admissions Set 2, CX00121-CX00129; COSCO Invoices 2024, CX01419-CX01425.

RESPONSE: Admitted.

CF38. COSCO has confirmed that only the one partial invoice remains outstanding which was part of Access' original claim. Declaration of Ogawa, ¶12, CX01452-CX01453; COSCO Response to discovery, Set 2, CX00137-CX00139; Access Requests for Admissions Set 2, CX00121-CX00129; COSCO Invoices 2024; CX01419-CX01425.

RESPONSE: Admitted.

CF39. At present, the invoices related to the claim on the 379 containers stand as follows:

1. Detention charges were paid on 61 containers totaling \$45,995.00.
2. COSCO cancelled detention charges in whole or in part on 319 containers totaling \$307,990.00. One of these containers is also [sic] included in the calculation of the amount of containers paid. See CF 37, 38; Dec. of Ogawa ¶13 CX01453; Access Claim Summary CX01430-01435.

RESPONSE: Admitted.

CF40. COSCO has admitted to the violations complained by Access. CF 37-39, 42.

RESPONSE: Denied.

CF41. COSCO cancelled the invoices knowing they were for charges when there was no terminal availability for the return of empty containers CF 37-40, 42.

RESPONSE: Respondent admits that it cancelled invoices. Respondent denies that it knew there was “no terminal availability.” Respondent notes that COSCO had no way of knowing whether Complainant may not have been able to obtain appointments or make dual transaction movements until Complainant apprised COSCO of such difficulties. Otherwise denied.

CF42. When comparing the dates on which COSCO demanded and accepted payment of detention charges to the dates on which COSCO has now cancelled detention charges, all but 24 dates have been withdrawn by COSCO; Dec. of Ogawa, ¶14 CX01453; See Access Claim Summary XC01430-01435, column E as compared to Access Terminal Availability Summary CX01436-CX1439 columns A, C-E.

RESPONSE: Denied.

CF43. Even though COSCO has now admitted that there was no availability for empty returns on the vast majority of the dates at issue, Access has provided evidence that the containers could not be returned and detention should have been cancelled; Dec. of Ogawa, ¶15 CX01453; Blue Cargo screen shots CX01092-CX01320L eModal information and Emails with COSCO, CX01311-CX01418; Access Terminal Availability Summary CX01436-CX01439; and Dec. of Thompson ¶7-10 CX01447-CX01448.

RESPONSE: Denied in part. Admitted that Complainant has provided evidence for certain dates in dispute but not for other dates. See RPFF70. Otherwise denied.

CF44. In the few instances where Access does not have documentary information as to

terminal locations on certain dates, Access' witness testimony and COSCO's [SIC] action in cancelling the related invoices should suffice to show the violation; see CF 43 and evidence thereon.

RESPONSE: Denied. First, it was not COSCO but the marine terminals who required a trucker to return an empty container in order to pick up a loaded container, otherwise known as a one-for-one swap, dual transaction, or dual move. Denied that Access One has asserted, much less demonstrated, that any particular invoice COSCO issued to AOT was "related" to any other. Denied that COSCO's agreement to cancel or waive any other invoices it may have issued to Access One in any way "shows" any unspecified alleged violation. Second, the law requires that a complainant must *prove* that, for each location on each date in question: (1) the complainant (or its agent) could not pick up or return the container on the specific date (2) due to reasons outside of its control; and (3) the charge assessed for that specific day could not have served to incentivize cargo movement. *TCW, Inc. v. Evergreen Line Joint Service Agreement*, 3 FMC 2d 1 (S.O. 2021), *aff'd* 5 FMC 2d 192 (FMC 2022), *vacated and remanded*, *Evergreen Shipping Agency (America) Corp. v. FMC*, 106 F.4th 1113 (D.C. Cir. 2024) ("TCW").

CF45. During the Relevant Time Period, since Access was unable to return the empty containers, Access was forced to keep the empty containers mounted on chassis owned or controlled by Access or a pool chassis, and was forced to be responsible for the storage of COSCO's empty containers at yards controlled by Access or which Access had access to; Dec. of Suzuki, ¶10 CX01443.

RESPONSE: Denied that Access was "unable" to return empty containers when a dual transaction was required. Perhaps improved operations (such as working on weekends) or

better management would have permitted Access One to complete dual transactions as required by the terminal just as many other drayage providers have been able to do. Regardless, that Access One could not meet the requirements of a marine terminal on a particular day was neither COSCO's fault nor responsibility.

CF46. COSCO's recent statement of account also lists two additional invoices which are outside of the scope of the Relevant Time Period and not subject to this action; Dec. of Ogawa, ¶12, CX01452-CX01453.

RESPONSE: Admitted.

CF47. Because of the ongoing difficulties in obtaining empty terminal locations, where indicated by stop over charges in the Access Claim Summary, Access would stop over the container at its yard and then arrange for re-delivery once terminal appointments became available instead of taking the empty directly from consignee's premises directly back to the COSCO designated terminal; Dec. of Suzuki, ¶11 CX01443.

RESPONSE: Respondent lacks information sufficient to admit or deny. Respondent notes that Complainant's inability to return containers to the terminal in conformity with the conditions imposed by the terminal is neither COSCO's fault nor responsibility.

CF48. Storage charges, chassis charges, stop over charges and redelivery charges were assessed by Access to COSCO. Dec. of Suzuki, ¶12 CX01443; Access invoices to COSCO, CX00713-CX01091.

RESPONSE: Admitted that AOT issued invoices to COSCO for its own storage charges, chassis charges, stop over charges and redelivery charges which AOT itself had incurred due to its own mismanagement, including its lack of a customer base sufficient to support dual transactions and its refusal to work on weekends. See RPFs 61-62. Denied that such invoices

were in any way valid or issued in conformity with the UIIA or any other agreement. Further denied that such invoices reflect AOT's actual costs, if any.

CF49. The charges, including the dates on which they were assessed are reflected on invoices sent to COSCO by Access; Dec. of Suzuki, ¶13 CX01443; Access invoices to COSCO, CX00713-CX01091; Dec. of Ogawa ¶16, CX01453-CX01454; Access Claim Summary CX01430-01435 including columns AB-AF.

RESPONSE: Denied.

CF50. COSCO has not remitted payment to Access on any of the claimed storage, chassis, stop over and re-delivery charges; Dec. of Ogawa, ¶17 CX01454.

RESPONSE: Admitted that COSCO's position is that Access is not entitled to payment from COSCO for any of the charges Access alleges were included in invoices Access One claims it issued to COSCO.

CF51. The following charges were assessed by Access to COSCO in relation to the relevant empty containers:

Storage charges of \$115,975.00

Chassis charges \$103,080.00

Stop over charges \$30,750.00

Re-delivery charges \$19,680.00; Dec. of Ogawa, ¶18 CX01454; Access Claim Summary, including columns AB-AF, CX01430-01435; Access invoices to COSCO, XC00713-CX01091.

RESPONSE: Denied that Access One is entitled to reparations for any of those charges.

CF52. No person or entity has paid Access for the charges identified in CF51; Dec. of Ogawa, ¶17 CX01454.

RESPONSE: Respondent lacks sufficient information regarding Complainant's internal operations to admit or deny. Respondent objects to Complainant's citation to a declaration of an AOT employee that was not produced in discovery.

CF53. The violations of 46 U.S.C. §§41104(a)(3) & (8) are predicated on the unlawful practice of requiring "dual" transactions to return an empty container; Access' allegations are repeated in the Answer at pgs. 13-14; CX00014-CX00015.

RESPONSE: To the extent that CF53 is a conclusion of law, no response is required. Respondent does not comprehend this purported "fact" and consequently cannot respond to it, save to reiterate that "dual transactions" are requirements imposed by the marine terminals to ensure the fluidity of their gate operations, and over which COSCO has no control.

CF54. Access was unable to return empty containers when a "dual" transaction was required; Dec. of Thompson, ¶11 CX01448; eModal info and COSCO emails, CX01319, CX01320, CX01349, CX01357, CX01391, CX01402, CX01403.

RESPONSE: Denied that Access was "unable" to return empty containers when a dual transaction was required. Perhaps improved operations (such as working on weekends) or better management would have permitted Access One to complete dual transactions as required by the terminal just as many other drayage providers have been able to do. Regardless, that Access One could not meet the requirements of a marine terminal on a particular day was neither COSCO's fault nor responsibility.

CF55. Dual move requirements, and more specifically, an ocean carrier imposing detention when a trucker's inability to return a container within free time is due to it not being able to satisfy a dual move requirement is not a reasonable practice; 85 FR 29638, 29655; Dec. of

Suzuki ¶14, CX01443.

RESPONSE: Denied. First, this purported fact is a legal conclusion. Second, a drayage provider's inability to satisfy terminal requirements is neither within the control or the responsibility of the ocean carrier.

CF56. When challenged, COSCO's equipment department indicated they had no control over its designated terminals appointment system, Dec. of Thompson ¶12 CX01448; eModal Information and Emails with COSCO, CX1387, CX1401, CX01413; see also COSCO First Set of Discovery Responses response to request for admission no 10, CX00110.

RESPONSE: Admitted that, as a matter of law, COSCO does not control the appointment system for the return of empty containers for any marine terminal.

CF57. COSCO advised Access if there was an issue with appointments Access should dispute the charges with COSCO in Shanghai, Dec. of Thompson ¶12 CX01448; eModal Information and Emails with COSCO, CX01387, CX01401, CX01413.

RESPONSE: Admitted that COSCO's Shanghai office is the proper venue for disputing detention charges.

CF58. Access was charged detention on 379 separate containers over the course of 15 months, see generally Access Claim Summary CX01430-01435.

RESPONSE: Admitted.

CF59. When disputed, COSCO refused to accept that terminals did not have appointments or space or required dual appointments that could not be fulfilled. In the context of this complaint, those actions were not isolated but occurred from July 2021 through May 2024 when COSCO finally withdrew the remaining disputed invoices.

RESPONSE: Denied. COSCO did not refuse to waive or cancel invoices when Complainant

disputed them. In fact, AOT admits that COSCO waived or cancelled at least 318 out of the 379 invoices AOT has disputed.

CF60. COSCO threatened to shut out Access on at least two separate occasions and did shut out Access on one occasion. COSCO also threatened to shut out Access in February 2022 when COSCO actually owed Access for unpaid invoices on Carrier Haulage performed by Access; Dec. of Suzuki, ¶9, CX01442; Shut Out Notices, CX01303-CX1310; Emails re Shut Out, CX01426-CX01429.

RESPONSE: Denied. Although the UIIA’s automated system generates shut out warning letters, COSCO never imposed a shut out against AOT and never prevented AOT from accessing a terminal (“shut out”). Admitted that the UIIA administrator sent automated shut out notices to Access One for unpaid detention charges. Denied to the extent that during the pendency of litigation, such automatic notices were manually overridden. Denied inasmuch as the threatened shut out was never effective, as COSCO timely instructed the UIIA: “do not shut out under disp pending trade review...” CX01308. Accordingly, UIIA immediately rescinded the shut-out notice and AOT was never shut out. CX01310 (Reinstatement of Interchange Privileges Effective Date: 03/29/2022).

CF61. COSCO’s practice was to provide a system of inadequate space for the return of empty containers, refuse to acknowledge the lack of space, take no steps to correct the issue for over three years, and put the burden on a motor carrier to dispute known invalid charges, CF *passim*.

RESPONSE: Denied. CF61 is a legal conclusion masquerading as a statement of fact.

CF62. If COSCO’s invalid invoices were not paid, COSCO would threaten a shut out in an attempt to nevertheless enforce compliance, Dec. of Suzuki, ¶9, CX01442; Shut Out Notices

CX01303-01310; Emails re Shut Out Notices CX01426-01429.

RESPONSE: Denied that COSCO's automated shut out notices are sent as a "threat . . . to enforce compliance."

CF63. Access' claim concerns detention charges concerning 379 containers over the course of 262 different discrete dates from July 13, 2021 through October 10, 2022; CF 28, 58; Access Claim Summary CX01430-CX01435, including columns N & V; Access Terminal Availability Summary CX01436-CX01439, including column A.

RESPONSE: Denied. Access One's claims concern only outstanding detention invoices.

CF64. Prior to the suit, COSCO had already cancelled charges totaling \$110,270.00 concerning 200 containers; Access Claim Summary CX01430-01435 column R.

RESPONSE: Admitted that COSCO has cancelled and waived these charges, and more.

CF65. Instead of cancelling detention for all invoices where dates reflected detention was unwarranted, COSCO arbitrarily cancelled charges for 80 dates where which [sic] have also been paid by Access; Dec. of Ogawa, ¶19 CX01454; Access Terminal Availability Summary CX01436-CX01439 columns A, C - E.

RESPONSE: Admitted that COSCO cancelled charges for 80 of the dates for which Access had paid detention charges. Denied that such cancelations were arbitrary. Respondent further objects to Complainant's cited source, the testimony of Kahana Ogawa, an Access One employee and witness whose declaration was not provided to Respondent during the discovery period.

CF66. During the course of this action, COSCO cancelled detention charges of \$197,720.00 for an additional 121 containers, Dec. of Ogawa, ¶20 CX01454; Access Claim Summary, including column S, CX01430-01435; COSCO Response to discovery, Set 2, CX00137-

CX00139; Access Requests for Admissions Set 2, CX00121-CX00129; COSCO Invoices 2024, CX01419-CX01425.

RESPONSE: Admitted that COSCO cancelled charges for 121 containers and more.

CF67. As of the date of this filing, all that remains are 24 dates which COSCO insists on continued billing; CF42.

RESPONSE: Admitted.

CF68. All that remains are 24 dates on which COSCO insists on continued billing (CF67). In short, for detention billing representing 319 of 379 containers related to 238 of 262 billed dates, COSCO admits its detention billing practices were in error, CF42, CF67.

RESPONSE: Respondent admits that it has canceled charges for 84% of containers (319/379) and 90% of billing dates, representing those containers and dates for which Access One was able to demonstrate container return appointment unavailability. Denied that such canceled charges in any way constitute an admission that a practice of assessing detention when a container is returned past free time or any other billing practices were in error, as waiving a charge in retrospect does not mean such charge was issued in error.

CF69. By its actions COSCO admits, it did not have adequate facilities for the return of its empty containers, was arbitrary and capricious with regard to its detention billing practices, its resolution of disputes and its attempts to enforce non-payment of invalid invoices by threatening to shut out Access. CF30, 60, 62.

RESPONSE: Denied that COSCO has admitted any such thing. First, this purported fact is another thinly disguised legal assertion. Second, the terminal facilities are the purview of the terminals, not the carriers. Finally, any shut out notices sent to Access One were automatically sent as a result of Access's failure to timely pay COSCO and were sent by

UIIA, were not intended to be threatening, and were manually overridden at the request of COSCO.

CF70. COSCO did not have a single dedicated terminal for the return of empty containers the LALB; Access Terminal Availability Summary CX01436-CX01439; Blue Cargo screen shots, CX01092-CX01302; eModal Information and Emails with COSCO, CX01311-CX01418.

RESPONSE: Admitted that COSCO had multiple return locations available for the return of empty containers in the Port of Los Angeles and Long Beach during the relevant period. Otherwise denied.

CF71. On a regular workday basis, COSCO through eModal would publish/email a matrix of its designated terminals in LA/LB and the availability for empty return locations, CF9.

RESPONSE: Admitted.

CF72. Once the eModal list is published and distributed, a motor carrier such as Access, would then attempt to obtain an appointment at the designated terminal; CF24; CF25; Dec. of Thompson, ¶3 CX01447.

RESPONSE: Respondent lacks sufficient information regarding Complainant's internal operations to admit or deny.

CF73. Because of continuing issues with obtaining appointments with designated terminals, Access had dedicated employees which were responsible to attempt to secure appointments several times throughout the day; Dec. of Suzuki, ¶15 CX01442; Dec. of Thompson ¶7 CX01447.

RESPONSE: Respondent lacks sufficient information regarding Complainant's internal operations to admit or deny.

CF74. When appointments were unavailable, Access would often contact COSCO,

notifying COSCO that appointments were not available, seeking alternative locations; CF26, CF56, CF57, Dec. of Thompson, ¶10, CX01448; eModal Information and Emails with COSCO CX01311-CX01418.

RESPONSE: Admitted that AOT contacted COSCO at various times between February 9 and April 5, 2022, to complain of difficulties obtaining appointments for single returns. See RPFF42. Otherwise denied.

CF75. Access has been able to confirm the lack of empty return locations in several ways: A) COSCO's admissions CF37-40, 42, 68, 69; B) Blue Cargo information CX01092-CX01302; C) testimony and email communications produced from Access CF9, 10, 25 and 43.

RESPONSE: Denied. A) COSCO has not admitted to a "lack of empty return locations"; B) Blue Cargo information is neither credible or nor reliable (see RCFF 69); C) the self-serving testimony of Complainant's principal is unreliable.

CF76. COSCO, by cancelling detention for 238 of 262 disputed dates, has verified Access' position that no space was available for the return of empty containers for over 15 months! Access Terminal Availability Summary, CX01436-CX01439 including columns A, C-E; Access Claim Summary, CX01430-CX01435 including columns N, R, S & V.

RESPONSE: Denied. Moreover, assuming *arguendo* that AOT was genuinely unable to secure an appointment, this still would not mean that "no space was available for the return of empty containers for over 15 months."

CF77. Blue Cargo screenshots show that even when COSCO professed to have terminal space available, such space was illusory since no appointments were available; Access Terminal Availability Summary, CX01436-01439; Blue Cargo Screen Shots CX01902-CX01302.

RESPONSE: Denied. Blue Cargo does not receive its information directly from any marine

terminal and is not sanctioned by any marine terminal. In other proceedings, the Presiding Officer has recognized that “Blue Cargo’s data is sometimes inaccurate.” *Hapag-Lloyd A.G. and Hapag-Lloyd (America) LLC – Possible Violations of 46 U.S.C. § 41102(c)*, FMC Dkt. 21-09 (I.D. April 22, 2022). Respondent objects to Blue Cargo screen shots as irrelevant and unreliable. Terminals in the LA/LB area release (i.e., make available) appointments either daily (PCT, LBCT) to 1.5 weeks to 2 weeks in advance (Fenix)[“FMS”]. Prudent drayage providers, therefore, plan their dispatches accordingly, as appointments are taken up quickly. If AOT did not timely attempt to make appointments, the Blue Cargo screenshots showing the lack of available appointments on a certain day as of that morning do not identify whether adequate appointments were ever available.

CF78. Access attempted to contact COSCO and the terminals themselves to find locations and available appointments without success CF26, CF56, CF57, CF74.

RESPONSE: Denied that Complainant has introduced any evidence whatsoever of any attempts to contact the marine terminals themselves. Admitted only to the extent that AOT attempted on a handful of occasions to contact COSCO to complain of its lack of success booking appointments. See RPFF 42-61.

CF79. COSCO’s inability to provide for adequate terminal facilities for the timely return of empty containers harmed cargo fluidity [SIC]; Dec. of Sunaki, ¶16, CX01443.

RESPONSE: Denied. This is another legal conclusion disguised as a statement of fact.

CF80. Apart from generalized guidance in its tariff, COSCO has not identified any other rules or procedures in which it addresses its improper detention billing practices; COSCO First Set of Discovery Responses, response to interrogatories nos. 5, 8, 10 and 14, CX00098-CX00102; COSCO’s Rules Tariff, CX00455-CX00456.

RESPONSE: Denied that COSCO's detention billing practices are improper. Otherwise admitted.

CF81. Per its tariff, COSCO was to undertake reconciliation of disputes within 30 days; COSCO Rules Tariff CX00455-CX00456.

RESPONSE: Admitted.

CF82. No specific guidance as to how COSCO was to address disputes is provided in COSCO's tariff. CF80.

RESPONSE: Denied.

CF83. Out of 379 invoices, COSCO took over two years to respond to the dispute by cancelling charges for 121 invoices totaling \$197,720.00, see CF66.

RESPONSE: Denied. In fact, COSCO responded to Access One president Nobu Suzuki's first request for cancelation of per diem charges, sent February 9, 2022, that same day. RPF 23-24. The next day, February 10, 2022, COSCO's LA/LB Deputy General Manager, Phillip Taylor, emailed Mr. Suzuki, "LBCT is open for empty single returns. Additional appointments were released today, and there will be no issue securing empty return appointments during Friday night, or Saturday/Sunday day shifts. *Please plan to take advantage of the weekend offering.*" RPF 47. Not only did AOT fail to respond to Mr. Taylor, but AOT also has introduced no evidence that it took advantage of weekend appointments, as Mr. Taylor suggested. RPF 48, 62.

Following this February 9-10 email exchange, AOT did not subsequently contact Mr. Taylor or COSCO representatives directly. Instead, AOT submitted eleven (11) help desk tickets with COSCO's Equipment Control Department between February 11 and April 5, 2022, despite COSCO's March 25 email explaining that "the Equipment Control

Department does not have the authority to waive per diem, Exempt, and cannot Stop the Per Diem Clock for issues by the Terminal's appointment system.” RPFF 48-61.

CF84. For 61 invoices totaling \$45,995.00 COSCO as yet to cancel such charges and issue a refund notwithstanding that some charges were incurred on 80 dates which COSCO has cancelled other charges; Dec. of Ogawa ¶21 CX01454-CX01455, Access Claim Summary CX01430-01435 and Access Terminal Availability Summary CX01436-CX01439, columns A, C-E.

RESPONSE: Admitted that COSCO has cancelled or waived the large majority of detention charges assessed to AOT. Otherwise denied.

CF85. COSCO has not identified or provided any mechanism to ensure that the terminals it designates for empty returns actually has space or available appointments see CF10, 25, 35, 57, 59, 77.

RESPONSE: Denied. As acknowledged by Complainant in CPFF 20, COSCO and eModal provide daily communications regarding terminal operations and appointments. COSCO daily conveys empty return location instructions to drayage truckers.

CF86. In addition to and as part of its unjust practices re detention billing, COSCO threatened to shut out Access on at last [sic] two occasions, did shut out Access on one occasion, knowing full well the invoices remained in dispute and that the disputes were valid. CF 30, 60, 62.

RESPONSE: Denied. See Replies to CF30, CF60, CF62.

CF87. Without regard to the validity of any invoice, COSCO reserves the right in its tariff to shut out motor carriers if any invoice remains unpaid; COSCO Rules Tariff, CX00455-CX00456.

RESPONSE: Denied to the extent that Complainant suggests that COSCO's invoices are invalid. Admitted that COSCO's tariff and UIIA Addendum include reservations of

COSCO's legal rights.

CF88. Access had no ability to “flip,” i.e. remove, the empty container off of the chassis when it was required to store the container and chassis; Dec. of Suzuki, ¶17 CX01443-01444.

RESPONSE: Respondent lacks sufficient information regarding Complainant's internal operations to admit or deny. Respondent further lacks information as to whether AOT may have been able to take other remedial measures, such as “flipped” an empty container off of one chassis and on to another at another facility such as the chassis provider, etc.

CF89. Until the empty container was returned, not only was Access forced to be responsible to store COSCO's empty container, Access was also unable to use the chassis associated with that container, Dec. of Suzuki, ¶17 CX01443-01444.

RESPONSE: Denied that Access was unable to use the chassis associated with that container. See Reply to CF88. Further denied to the extent that AOT delayed returning the empty container and thus was responsible for storage and other costs.

CF90. COSCO's inability to accept empty containers in a timely fashion, required Access to store COSCO's containers on chassis without compensation; Dec. of Suzuki, ¶17 CX01443-01444.

RESPONSE: Denied. The problem is not that COSCO was unable to accept empty containers in a timely fashion; the problem is that AOT was not proactive in seeking these competitive appointments, as evidenced by its refusal to work on weekends. Access One was thus responsible for any additional costs it may have incurred.

CF91. Valuable yard space and the inability to use the chassis, a shortage of which was occurring during the Relevant Time Period, were experienced by Access; Dec. of Suzuki, ¶17 CX01443-01444.

RESPONSE: COSCO lacks sufficient information to admit or deny the value of Access One's yard space, its ability to use a chassis, or whether there was a shortage of chassis during the Relevant Time Period or the causes for any alleged chassis shortage.

CF92. Access billed COSCO for the involuntary storage and chassis use at the commercially acceptable rates of \$45.00 for container storage and \$40.00 for chassis per day for use on dates where Access was unable to return the empty containers; Dec. of Suzuki, ¶18, CX014444; Dec. of Ogawa, ¶16 CX01453-CX01454; Access Invoices to COSCO, CX00713-CX01091; Access Claim Summary CX01430-01435 columns AC and AD.

RESPONSE: Denied that the arbitrary rates asserted by Complainant are “commercially acceptable.” Further denied that these “bill[s]” issued by AOT are legitimate.

CF93. Under normal circumstances, Access would have been able to return the empty container directly from the consignee's place of business for the usual drayage charge assessed to COSCO or the consignee, Dec. of Suzuki, ¶11, CX01443.

RESPONSE: Denied that any of the drayage charges for the shipments in question were assessed to COSCO. Further denied because this counterfactual is neither remotely probative nor relevant.

CF94. Because of the ongoing difficulties in obtaining empty terminal locations, Access would stop off the empty container at its yard and then arrange for re-delivery once terminal appointments became available instead of taking the empty directly from consignee's premises directly back to the COSCO designated terminal. As a result, Access was required to impose a stop over and re-delivery fee; Dec. of Suzuki, ¶11 CX01443.

RESPONSE: Respondent lacks sufficient information to admit or deny Access One's normal internal operations or whether any “stop off” or “redelivery” was additional or routine.

Otherwise denied.

CF95. Access charged a “stop over” fee for this service in the amount of \$125.00 per container; Dec. of Suzuki, ¶11, 18 CX01443-CX01444; Access Invoices to COSCO, CX00713-CX0109; Access Claim Summary CX01430-01435, column AE.

RESPONSE: Respondent lacks sufficient information to admit or deny Access One’s normal internal operations as to whether any “stop over” fee was routine or additional, or the amount thereof. Denied that Access One has produced any evidence to support that it has paid such “stop over” fees. Further denied that COSCO ever required or requested any stop over from Access One or agreed to pay such a fee. Further denied that the UIIA authorizes or condones such charges from a drayage provider to an ocean carrier. Further denied that any such fee is related to or caused by any alleged violation of the Shipping Act.

CF 96. When space/appointments became available, Access would also have to undertake the final delivery to the port for the stop over empty containers [sic], which would incur a “re-delivery” fee of \$80.00 per container. Dec. of Suzuki, ¶11, 18 CX01443-CX01444; Access Invoices to COSCO, CX00713-CX01091; Access Claim Summary, CX01430-01435, column AF.

RESPONSE: Respondent lacks sufficient information regarding Complainant’s internal operations to admit or deny. Respondent also lacks information as to whether any alleged “redelivery” fees was routine or additional or associated with any of the invoices that are the subject of its Complaint. Denied that Access One has produced any evidence showing that it had paid any alleged “re-delivery” fees.

CF97. If COSCO is not required to pay the storage, chassis, stop over and redelivery fees, COSCO would then experience a windfall in that it did not take any measure or expense to ensure its obligated adequate space and facilities to accept empty containers, and instead involuntarily

required Access to bear the related expenses for storage, chassis use and additional stop over and re-delivery services, Dec. of Suzuki ¶19 CX014444.

RESPONSE: Denied. This is definitionally untrue because COSCO in no way benefitted from the failure of Access One to timely return its equipment such that COSCO “experience[d] a windfall.” To the contrary, COSCO incurred additional lost opportunity costs due to Access One’s untimely return of its equipment.

CF98. Access has incurred damages in the amounts as follows:

Storage charges of \$115,975.00

Chassis charges \$103,080.00

Stop over charges \$30,750.00

Re-delivery charges \$19,680.00 see CF47-52; CF88-97.

RESPONSE: Denied that Access One has introduced evidence that it has incurred these charges.

CF99. In addition to the above costs incurred by Access, COSCO had collected \$45,995.00 in detention charges on invalid invoices; CF 39, 84.

RESPONSE: Denied that any charges imposed by COSCO were invalid.

CF100. Access has demonstrated that the detention charges were invalid due to lack of designated terminals for empty returns or lack of appointments; CF39, 84.

RESPONSE: Denied. Not only has Complainant failed to demonstrate that the detention charges assessed by COSCO were invalid, but Complainant has also failed to demonstrate that there was a true “lack of appointments” including on weekends.

CF101. The total invalid detention charges of \$45,995.00 should be refunded by COSCO to Access, CF39, 84.

RESPONSE: Denied. This is clearly a legal argument in the guise of a purported “fact.”

CF102. When a dual move is required to return an empty container, it is precluding any motor carrier from returning an empty container unless it has a corresponding full container to pick up, CF11, 35, 55.

RESPONSE: Admitted that dual moves – which are imposed by the terminals, not carriers – require drayage providers to pick up a full container when returning an empty one. Otherwise denied.

CF103. Dual moves restrictions give preference to any motor carrier which have the ability [sic] to pick up a full container at the same time as returning an empty at that particular terminal; CF11, 35, and 55.

RESPONSE: Denied because Access One has not demonstrated that it never had the ability to pick up a full container at the same time as it returned an empty as required by the marine terminal to manage gate fluidity. Further denied that dual moves give preference to any motor carrier or other third-party entity. Also denied that COSCO is responsible for the ramifications of dual move requirements.

CF104. Access has been charged detention when it was unable to return empty containers if it did not have a corresponding dual move, CF11, 35 and 55.

RESPONSE: Admitted that COSCO charged AOT detention for containers that AOT retained past the expiration of free time, no matter the reason. Noted that COSCO has since waived or refunded the vast majority of those charges.

CF105. COSCO has confirmed its detention policies are found in its tariff for both Merchant and Carrier Haulage, CF 36, 80 and 82.

RESPONSE: Admitted.

CF106. COSCO does not provide for a detention exception [sic] in its tariff if a dual move cannot be used to return an empty container; COSCO's Rules Tariff CX00451-CX00454; CF36, 80 and 82.

RESPONSE: Admitted.

CF107. COSCO charges detention even if a dual move is not available to the motor carrier. See Access Terminal Availability Summary CX01436-CX01439 and Access Claim Summary CX01430-CX01435.

RESPONSE: Admitted. COSCO has no way of knowing when or if a particular motor carrier can or cannot comply with a dual move requirement imposed by a terminal.

CF108. On at least 15 dates, certain COSCO's terminals designated only dual moves (and a subset of dual on POP) would be required to return empty containers. COSCO routinely charged Access for detention on these dates; Access Terminal Availability Summary CX01436-CX01439 and Access Claim Summary CX01430-01435.

RESPONSE: COSCO lacks information sufficient to respond to the unexplained parenthetical ("and a subset of dual on POP"). Denied because COSCO does not own or control the terminals in question and thus they are not "COSCO's terminals." Denied that issuing an invoice to Access One after it had returned an empty container on a mere 15 dates consists of a "routine." Otherwise denied.

CF109. Access, at minimum, is acting on behalf of a "shipper"; CF3-8.

RESPONSE: Denied.

CF110. Access, picks up full containers and returns empties on behalf of its and COSCO customers, which are "shippers" as to COSCO, CF3-8.

RESPONSE: Admitted only to the extent that consignees may be characterized as "shippers"

and therefore COSCO's "customers." Otherwise, denied.

CF111. Dual moves are by their very nature unjust and unfair, because COSCO is unfairly penalizing Access for patronizing another carrier or its designated terminal. COSCO and its terminals, by refusing to accept the return of empty containers unless there is a corresponding full container pick up at that terminal, is in effect unjustly and unfairly discriminating for the lack of additional shipments by COSCO or through COSCO's terminal; CF10, 11, 27, 35, 54, 55, 59, 102, 103, ,104, 106, 107, 108.

RESPONSE: Denied that AOT "patronized" COSCO. Instead, AOT contracts for services with third-party entities that patronize COSCO as shippers and consignees. Denied to the extent that Complainant implies that COSCO owns or operates terminals. Otherwise, CPFF111 is denied as a conclusion of law.

CF112. If a full container pick up was available at another terminal on behalf of another carrier, Access would have to forgo returning the empty container, CF102; Dec. of Suzuki, ¶14 CX01443.

RESPONSE: COSCO lacks sufficient information regarding Complainant's internal operations to admit or deny.

CF113. To the extent the Presiding Officer has awarded reparations for COSCO's violations of §41102(c), additional reparations for violation of §§41104(a)(3) and (8) would be duplicative and instead Access seeks nominal damages in the amount of \$1.00; CF98, 99.

RESPONSE: CF113 is a legal argument and as such COSCO denies it.

CF114. The return of COSCO's empty containers to a terminal or location designated by COSCO is integral to the receiving, handling, storing and delivering property, 46 C.F.R. §565.5(c)(ii).

RESPONSE: Denied that the “designation” of a return location is “receiving, handling, storing [sic] and delivering property.” Admitted to the extent that the return of empty containers from a consignee to a return location is done by drayage providers. Admitted to the extent that ocean common carriers require containers to move their customers’ cargo. The return of empty containers from a consignee of cargo to the ocean carrier may be done by different parties and subject to many different contractual relationships, not all of which are governed by the Shipping Act. Otherwise, admitted.

CF115. An ocean carrier such as COSCO is responsible for having adequate terminal facilities for its operations, including empty returns, see 85 FR 29638, 29650 (2020).

RESPONSE: Admitted to the extent that ocean carriers are responsible for “provid[ing] adequate terminal facilities,” which COSCO accomplishes by contracting for the facilities of a terminal operator. Otherwise denied.

CF116. Access filed its complaint, which was answered, prior to July 2024, thus the three year requirement of §42301(a) is satisfied. As a result, Access is entitled to seek reparations for injuries caused by COSCO’s conduct, Answer to Complaint, CX00001-CX00022.

RESPONSE: Admitted that Access One filed its complaint prior to July 2024 and therefore those alleged claims that accrued between September 2021 and October 2022 are within the limitations period of the Shipping Act. To the extent CF116 alleges Access One is entitled to reparations, has actual injuries, or that those alleged injuries were caused by a violation of the Shipping Act, denied.